IN THE SUPREME COURT OF INDIA

CROSS-CASES & TRIAL PROCEDURE JURISDICTION

(Division Bench (2 Judges))

CASE NUMBER: Criminal Appeal No. 1105 of 2002 **CNR: SCIN010011052002**

REPORTABLE CITATION: (2003) 9 SCC 426 DATE: April 02, 2003

CORAM: Hon'ble N. Santosh Hegde & B.P. Singh, JJ.

State of M.P. v. Mishrilal (Dead) and Others

State of Madhya Pradesh ...PETITIONER(S)

VERSUS

Mishrilal (Dead) and Others ...RESPONDENT(S)

HEADNOTE & STATUTORY PROVISIONS CONSIDERED

Acts: Code of Criminal Procedure, 1973, Indian Penal Code, 1860 | Sections: Section 302 IPC, Section 307 IPC

Established the standard procedure for trial of cross-cases arising out of the same occurrence: both cases must be tried by the same judge one after another and judgments pronounced on the same day. When two opposing groups file counter-complaints over the same clash, the same judge must try both cases back-to-back to ascertain the true aggressor.

RATIO DECIDENDI & BINDING LEGAL PRINCIPLE

In cross cases arising out of the same incident, the proper procedure is that both cases must be tried by the same court. After recording evidence in one case, the court should hear the other case and deliver judgments on the same day so as to avoid conflicting findings and ascertain the true genesis of the incident.

FINAL JUDICIAL DISPOSITION

DISPOSITION: Acquittal Affirmed in Cross-Trial (Outcome: Dismissed)

Precedential Authority: Good Law (Binding Procedural Precedent)

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`Section 65B IEA / Section 63 BSA • Immutable Repository Authority Record`